

PETITION FOR EXPUNGEMENT UNDER MISS. CODE ANN. SEC. 99-15-59

IN THE COURT
OF, MISSISSIPPI
(THE COURT WITH JURISDICTION OVER THE MATTER, AND ITS COUNTY OR CITY - that
court's own office can confirm both)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

PETITION FOR EXPUNGEMENT UNDER MISS. CODE ANN. Sec. 99-15-59
(MISDEMEANOR ARREST OR CITATION - NO FORMAL CHARGE OR PROSECUTION WITHIN
TWELVE MONTHS)

1. The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, was arrested, issued a citation, or held for a
misdemeanor in this jurisdiction, and states that no formal charge was filed and no prosecution followed
within twelve months of the arrest or citation date, and that nothing arising from the matter is pending.
The petitioner therefore applies to this court, as the court with jurisdiction over the matter, for
expungement of the record under Miss. Code Ann. Sec. 99-15-59.

2. The petitioner further states:

Petitioner's date of birth: 1968-12-31

Misdemeanor offense for which the petitioner was arrested, cited, or held, worded exactly as the arrest
record words it:

.....
.....

Date of the arrest or citation, exactly as the arrest record states it:

.....

Name of the agency that made the arrest or issued the citation:

.....

Arrest, citation, or booking number, if one appears on the arrest record:

.....

3. Twelve months have passed since the date stated above. No formal charge was filed and no prosecution
followed during that period, and nothing arising from the matter is pending.

4. Filed with this petition are the petitioner's arrest record for the matter and a proposed order.

5. The petitioner asks the court to expunge the record of the arrest or citation described above.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Gulfport, Mississippi
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:runtime-only:MS:uncharged-or-unprosecuted-misdemeanor-after-12-months-99-15-59

PROPOSED ORDER OF EXPUNGEMENT UNDER MISS. CODE ANN. SEC. 99-15-59

IN THE COURT
OF, MISSISSIPPI

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner for expungement under Miss. Code Ann. Sec. 99-15-59 of a misdemeanor arrest or citation not formally charged or prosecuted within twelve months. The Court, having considered the petition and the arrest record filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

.....

(The court signs here if, and only if, it grants the petition.)

Route: obligation:runtime-only:MS:uncharged-or-unprosecuted-misdemeanor-after-12-months-99-15-59

FILING INSTRUCTIONS

This packet is prepared for expunging a Mississippi misdemeanor arrest or citation that was never formally charged or prosecuted within twelve months, under Miss. Code Ann. Sec. 99-15-59.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

THE ONE BRANCH THIS PACKET IS FOR

A misdemeanor arrest or citation that was NEVER formally charged or prosecuted, where twelve months have passed since the arrest or citation date and nothing is pending. The recorded rule: the twelve-month clock applies to the no-charge branch only. If your charge was filed and then dismissed, stop - that is the dismissal branch of Sec. 99-15-59, and its instrument is not in this packet.

WHAT YOU DO, IN ORDER

STEP ONE. Confirm the branch: misdemeanor only; no formal charge and no prosecution during the twelve months; nothing pending.

STEP TWO. Get your arrest record for the matter from the arresting or citing agency, or from the court with jurisdiction. It is a named component of this packet and is filed with the petition.

STEP THREE. Fill in every dotted blank from the arrest record. Do not guess a date, an offense wording or an agency name.

STEP FOUR. Sign and date the petition yourself.

STEP FIVE. File the petition, the arrest record and the unsigned proposed order with the court with jurisdiction over the matter. Ask that court's office whether a filing fee applies and how it accepts filings - no committed record this packet is built from states either.

WHO MUST BE SERVED

No committed record this packet is built from establishes a service rule for this branch. The route contract carries no service term at all, and no packet-set manifest exists for this family. **THAT IS NOT A FINDING THAT NO SERVICE IS REQUIRED** - it is the absence of a record, and this packet does not turn one into the other.

The one notice rule the compiled Mississippi profile does carry - that the petitioner must give ten days' written notice to the district attorney before any hearing - is recorded against Sec. 99-19-71, not against Sec. 99-15-59, so this packet does not read it across to this branch and you should not assume it applies here.

Ask the office of the court with jurisdiction over the matter whether a copy must go to anyone, and to whom and how, at the same time you ask it about the fee and the filing method. Ask before you file.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

Stop, and take this packet to a lawyer or a legal-aid office, if any of these is true:

- the matter was anything other than a misdemeanor;
- a formal charge was filed, or any prosecution activity happened, during the twelve months;
- the charge was filed and then dismissed - that is the dismissal branch, a different instrument;
- anything arising from the matter is pending;
- there are related counts and you are unsure how they are treated;
- any immigration question is involved.

WHAT THIS PACKET IS NOT

This is a prepared set of composed pleadings. It is not an official Mississippi form - no committed record names one for this branch - and it is not legal advice, it is not filed for you, and it does not decide whether the court will grant expungement.

Route: obligation:runtime-only:MS:uncharged-or-unprosecuted-misdemeanor-after-12-months-99-15-59